

Pier and Harbour Order (Margate) Confirmation Act, 1958

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CHAPTER xvii

An Act to confirm a Provisional Order made by the Minister of Transport and Civil Aviation under the General Pier and Harbour Act 1861 relating to Margate. [7th July 1958.]

WHEREAS a Provisional Order made by the Minister of Transport and Civil Aviation under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport and Civil Aviation under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall ^{schedule.} from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Margate) Confirmation Act 1958.

SCHEDULE

MARGATE PIER AND HARBOUR

Provisional Order to authorise the Company of Proprietors of the Margate Pier and Harbour to levy rates for the use of any part of their high-water landing pier or jetty to authorise the Company to operate thereon a railway and services of vehicles for carrying passengers and to charge for the use thereof to reduce the number of directors of the Company to amend the provisions as to general assemblies of the Company and for other purposes.

Short and
collective titles.

1.—(1) This Order may be cited as the Margate Pier and Harbour Order 1958.

(2) The existing Acts and Orders and this Order may be cited together as the Margate Pier and Harbour Acts and Orders 1812 to 1958.

Commencement
of Order.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Interpretation.

3.—(1) In this Order unless the context otherwise requires—

“the Act of 1812” means an Act of the fifty-second year of the reign of King George the Third intituled “An Act for separating the Management of the Harbour of Margate, in the County of Kent, from the Paving and Lighting of the Town of Margate, and for vesting the future Management of the said Harbour in a joint Stock Company of Proprietors”;

“the Act of 1826” means an Act of the seventh year of the reign of King George the Fourth intituled “An Act to amend an Act for separating the Management of the Harbour of Margate, in the County of Kent, from the Paving and Lighting of the Town of Margate, and for vesting the future Management of the said Harbour in a Joint Stock Company of Proprietors”;

“the Company” means the Company of Proprietors of the Margate Pier and Harbour;

“director” means a director of the Company;

“enactment” means any Act of Parliament whether public general local or private any Order made under an Act of Parliament or any provision in an Act of Parliament or any such Order;

“the existing Acts and Orders” means the Acts and Orders set out in the First Schedule to this Order;

“the Harbours Clauses Act 1847” means the Harbours Docks and Piers Clauses Act 1847;

“the jetty” means the high-water landing pier or jetty belonging to the Company constructed in pursuance of the powers contained in the Act of 1812 the Margate Pier and Harbour Act 1871 and the Margate Pier and Harbour Order 1878;

“the Minister” means the Minister of Transport and Civil Aviation.

(2) In the existing Acts and Orders and this Order unless the context otherwise requires—

“ vessel ” includes any vessel ship lighter keel barge boat raft pontoon and craft of any kind howsoever navigated propelled or manned and except for the purpose of levying rates tolls or duties any seaplane on the surface of the water;

“ seaplane ” includes a flying boat or any other aircraft designed to manoeuvre on water.

4.—(1) Sections 6 to 22 24 to 26 and 51 to 96 of the Harbours Application of Harbours Clauses Act 1847 shall not be incorporated with this Order. Clauses Act 1847.

(2) (a) In the application to this Order of the incorporated sections of the Harbours Clauses Act 1847 the expression “ the special Act ” shall mean this Order and the expression “ the harbour dock or pier ” shall mean the jetty.

(b) In the application to the existing Acts and Orders and to this Order of the incorporated sections of the Harbours Clauses Act 1847 the expression “ vessel ” shall have the meaning assigned to it by subsection (2) of section 3 (Interpretation) of this Order.

(c) Nothing in the Harbours Clauses Act 1847 shall in any circumstances require or authorise the harbour master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever to the structure or equipment of a seaplane.

5. The Company shall be the undertakers for carrying this Order Undertakers. into execution.

6. The Company may—

Power to operate passenger services on jetty.

(1) lay down and maintain rails tramways and turntables on and along the jetty and may provide maintain and operate vehicles for the purpose of carrying passengers along the jetty;

(2) do all such things and make all such arrangements as may be requisite for or incidental to the provision and maintenance of such rails tramways turntables or vehicles and the operation thereof for the purpose aforesaid;

(3) demand and take such reasonable charges as the Company may determine for each person or article conveyed on such rails tramways or vehicles:

Provided that no line of rails or tramway constructed under this Order shall be used for the public conveyance of passengers until it has been certified by the Minister to be fit for that use.

7. After the commencement of this Order the Company may in addition to any rates tolls or duties authorised by the existing Acts and Orders demand and take for the use of the jetty or any part thereof rates not exceeding those specified in the Second Schedule to this Order subject to the exemptions specified in that schedule. Charges for use of jetty.

8.—(1) The Company may grant pass tickets or family tickets to passengers and promenaders or others for the use of the jetty (either inclusive or exclusive of admission to any building or room for the time being thereon) at such rates on such terms and for such periods Pass and family tickets.

not exceeding one year as the Company may determine and may issue books containing any number of pass tickets at a reduced rate and day tickets available for one day or part of a day only for any number of admissions on such day or part of a day at a reduced rate but so that no preference be given to any person.

(2) The Company shall have power to prescribe the conditions on which pass tickets and family tickets are issued and the persons by whom such tickets may be used.

(3) A pass ticket shall not be transferable and shall not be used by any person except the person to whom it is granted. A pass ticket or family ticket shall not be used otherwise than in accordance with the conditions on which it is issued or after the period limited for its use.

(4) There shall be printed on every pass ticket and family ticket the terms and conditions upon and subject to which the same is issued.

(5) If any person wilfully and with intent to defraud acts in any way in contravention of the provisions of this section or uses or attempts to use any false or counterfeit ticket he shall for each offence be liable to a penalty not exceeding twenty shillings.

Directors.

9.—(1) The vacancies existing at the commencement of this Order and any vacancy occurring after the commencement of this Order as a result of the death disqualification or retirement of any director shall not be filled up if the number of directors exceeds six and when the number of directors is reduced to six it shall not thereafter exceed six.

(2) Until the number of directors has been reduced to six in accordance with subsection (1) of this section the number of directors elected at a general assembly shall accordingly be equal to the number retiring by rotation.

(3) When the number of directors has been reduced to six in accordance with subsection (1) of this section—

- (a) the number of directors retiring by rotation each year shall be reduced to two;
- (b) a meeting of the court of directors shall if necessary be held as soon as may be after the reduction has taken effect in order to determine which two directors shall retire at each of the next three general assemblies at which elections of directors take place and the order of retirement shall in default of agreement between the directors be determined by the drawing of lots;
- (c) the quorum at a meeting of directors shall for all purposes be three and section XVIII (Regulations respecting the Court of Directors and Powers of the same) of the Act of 1812 shall be read and have effect accordingly.

Amendment of
section XIV of
Act of 1812.

10. Section XIV (First and other General Assemblies and electing Directors, &c.) of the Act of 1812 shall after the commencement of this Order be read and have effect as if—

- (a) for the words “the first twenty-one days in the months of April and October” there were substituted the words “the months of April or May and October or November”; and

(b) for the words "April as aforesaid" there were substituted the words "April or May as aforesaid"; and

(c) for the words "April following" there were substituted the words "April or May following".

11.—(1) Notwithstanding the provisions of the existing Acts and Orders all byelaws made by the Company after the passing of this Order under any enactment shall be subject to the provisions contained in subsections (2) (3) (4) (5) (6) and (7) of section 250 (Procedure &c. for making byelaws) and in sections 251 (Fines for offences against byelaws) and 252 (Evidence of byelaws) of the Local Government Act 1933 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the words "the Company" were inserted instead of the words "the authority" and "a local authority" wherever they occur and as if the reference to "the clerk of the authority" included a reference to "the clerk of the Company".

Application of Local Government Act 1933 to byelaws.

(2) The confirming authority for the purposes of the said section 250 shall be the Minister.

12. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him or the giving of any consent or approval under this Order and subsections (2) to (5) of section 290 (Power of government departments to direct inquiries) of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Company were a local authority.

Inquiries by Minister.

13. Any electrical works or apparatus constructed provided or laid down and any vehicle designed equipped or adapted for propulsion by electrical power provided and operated under this Order shall be so constructed or laid down and so maintained operated and used as to prevent interference with any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

For protection of Postmaster-General.

14. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

15. The enactments specified in the Third Schedule to this Order are hereby repealed to the extent specified in that schedule.

Repeals.

16. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise in relation thereto shall be paid by the Company.

Costs of Order.

SCHEDULES

FIRST SCHEDULE

EXISTING ACTS AND ORDERS

The Act of 1812.

The Act of 1826.

The Margate Pier and Harbour Act 1871.

The Margate Pier and Harbour Order 1878.

The Margate Pier and Harbour Act 1900.

The Margate Pier and Harbour (Increase of Charges) Order 1954.

SECOND SCHEDULE

RATES FOR USE OF JETTY

	s.	d.
For every person using the jetty for the purpose of walking for exercise pleasure or any other purpose (except for embarking or disembarking)—		
for each such use during the summer	0	6
for each such use during the winter	0	4
For every bath chair (including occupant) taken on the jetty—		
for each time	0	8
For every perambulator or bicycle taken on the jetty—		
for each time	0	8
In addition to the above rates—		
For every person using the jetty for the purpose of fishing—		
for each such use	0	6

EXEMPTIONS

The following persons shall at all times have free ingress passage and egress on foot to on or along and from the jetty:—

- (a) the master officers and seamen of any vessel landing or embarking passengers on or from the jetty;
- (b) Trinity House pilots members of the crew of Trinity House pilot vessels immigration officers and officers of Her Majesty's Customs and Excise whilst in execution of their duty;
- (c) all persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress.

NOTE:

In this schedule—

“summer” means the period from the 1st June to the 30th September (both days inclusive);

“winter” means the period from the 1st October to the 31st May (both days inclusive).

THIRD SCHEDULE

REPEALS

Act or Order	Section	Marginal Note	Extent of repeal
The Margate Pier and Harbour Act 1871.	19	Vacancies in the direction how to be filled up.	The whole section.
	23	Power to take rates according to Schedule.	The whole section.
	26	The Company may contract with persons for the use of the pier or jetty.	The whole section.
	27	Tickets not transferable.	The whole section.
	28	Officers of customs exempt from rates.	The whole section.
Margate Pier and Harbour Order 1878.	14	Power to take rates.	The whole section.
	17	Exemption of Custom House officers from rates.	The whole section.
	18	Lifeboat crew exempt from tolls.	The whole section.
Margate Pier and Harbour Act 1900.	4	Power to construct works and to levy tolls.	The whole section.
	5	As to widening of jetty.	The whole section.
	6	Works to be deemed to be within borough and parish.	The whole section.
	7	Period for completion of works.	The whole section.
	9	Works to be deemed part of Margate pier and harbour.	The whole section.
	10	For protection of Isle of Thanet Gaslight and Coke Company.	The whole section.
	28	Lifeboat crew exempt from tolls.	The whole section.
	30	Lights during construction.	The whole section.
	31	Lights after completion of works.	The whole section.
	32	Restriction on taking houses of labouring class.	The whole section.
	33	Works below high-water mark not to be commenced without consent of Board of Trade.	The whole section.
	34	Survey of works by Board of Trade.	The whole section.
	35	Abatement of work abandoned or decayed.	The whole section.
Margate Pier and Harbour (Increase of Charges) Order 1954.			In the schedule the entries under the heading "Entrance fee to jetty extension".

Table of Statutes referred to in this Act

Short title	Session and chapter
Harbours Docks and Piers Clauses Act 1847 ...	10 & 11 Vict. c. 27.
General Pier and Harbour Act 1861 ...	24 & 25 Vict. c. 45.
Telegraph Act 1878... ..	41 & 42 Vict. c. 76.
Local Government Act 1933 ...	23 & 24 Geo. 5. c. 51.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6. c. 51.

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